Dunn & Acosta LLP
Conroe, TX
Phone 713-555-4341

Settlement Demand

21 Sep 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1217 - Demand for settlement

Dear Claims Representative:

Our firm represents Megan Gutierrez in connection with injuries sustained in a collision that occurred on 18 Oct 2023 at a signalized intersection. Our client was proceeding lawfully through the intersection when your insured failed to yield the right of way and struck the driver's side of our client's vehicle. The police report and the physical damage to both vehicles are consistent with our client's account of the event.

As a direct result of the impact, our client suffered a serious shoulder injury. Imaging and treatment records document a torn rotator cuff requiring ongoing physical therapy, restricted range of motion, and pain that interferes with daily work and household activities. Our client's treating physicians have not yet cleared him for full duty, and future care may be necessary.

Liability in this matter is clear. Your insured's own statement acknowledges that the signal had changed before the vehicle entered the intersection. We have enclosed the medical records, billing statements, wage loss documentation, and photographs of the vehicle damage.

Accordingly, we demand payment of $176,000.00 to reoslve all clamis against your insured arising from this incident. This offer remains open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice.

Expert review: Christian Carter, pain management physician

Sincerely,

Laura Bryant
Dunn & Acosta LLP